

		must be filed no later than five court days before the hearing. (CRC 3.1300(c).) Even if the motion were properly served, Defendant has provided no memorandum of authorities to support the relief requested. (See CRC 3.1113(a) (“The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial . . .”).) Finally, even if the Court considered the merits, the motion would be denied because at least one party has requested a jury trial in this matter and posted the required fees. (See, e.g., ROA 60.) “As a general proposition, the jury trial is a matter of right in a civil action at law, but not in equity.” (C & K Engineering Contractors v. Amber Steel Co., Inc. (1978) 23 Cal.3d 1, 8; NMSBPCSLDHB v. County of Fresno (2007) 152 Cal.App.4th 954, 958.) This is a civil action, and the complaint appears to consist primarily, if not entirely, of legal causes of action. Accordingly, the motion is DENIED. The Court orders the Clerk to give notice.
106	S.K. Laboratories, Inc. vs. Tiger Fitness, Inc. 24-01422874	Motion for Entry of Judgment Plaintiff S.K. Laboratories, Inc. ("Plaintiff" or "SKL") moves the Court for entry of judgment against Defendants Tiger Fitness, Inc., Vorlo, Inc., and Chad Vordem Esche (collectively, “Defendants”) pursuant to the terms of a Stipulation for Entry of Judgment Upon Default. Motion is denied without prejudice. Defendants are in default. Entry of default deprives the court of jurisdiction to consider any motion other than a motion

		for relief from default. [W.A. Rose Co. v. Mun.Ct. (FitzSimmons) (1959) 176 CA2d 67, 72.] Plaintiff to give notice.
107	Birchall vs. Orange County Sheriff Department 25-01505924	1. Motion for Judgment on the Pleadings Defendant COUNTY OF ORANGE, a public entity, erroneously sued and served herein as ORANGE COUNTY SHERIFF’S DEPARTMENT (the “County”), will and hereby does move the Court, pursuant to California Code of Civil Procedure Section 438 and this Court’s non statutory authority to hear motions for judgment on the pleadings, for an Order granting Defendant’s Motion for Judgment on the Pleadings without leave to amend and dismissing Plaintiff MARC BRUCE RONALD BIRCHALL’s Complaint. On 8/25/2025 Plaintiff initiated this lawsuit by filing a Complaint. On 4/30/2026 Defendant served Plaintiff via email with this Motion for Judgment on the Pleadings. Plaintiff is in pro per. Notably, all papers opposing a motion “shall be filed with the court and a copy served on each party at least nine court days” before the hearing. [Code Civ. Proc. § 1005(b).] A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by CCP § 438, the rules governing demurrers apply. [Cloud v. Northrop Grumman Corp. (1998) 67 CA4th 995, 999.] The failure to oppose a demurrer may be construed as having abandoned the claims. [See Herzberg v. County of Plumas (2005) 133 Cal. App. 4th 1, 20 --“Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no